

		The elements of a civil claim under Penal Code Section 496 are: (1) that the particular property was stolen; (2) that the accused received, concealed or withheld it from the owner thereof; and (3) that the accused knew that the property was stolen. (<i>Finton Construction, Inc. v. Bidna & Keys, APLC</i> (2015) 238 Cal.App.4th 200, 213.) Here, the FAC alleges Plaintiff's property in excess of \$950 was stolen, that Defendant Hertz received that property, and that Defendant knew the property was stolen under false pretense. (See FAC ¶¶ 46-47.) <u>Fourth Cause of Action (Violations of the UCL)</u> The fourth cause of action alleges Defendant Hertz violated the UCL by knowingly and intentionally creating fraudulent car rental agreements to place bogus charges on Plaintiff's credit card. (FAC ¶ 51.) Business & Professions Code Section 17200 prohibits "any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising." Each prong of the UCL provides a separate and distinct theory of liability. (<i>South Bay Chevrolet v. Gen. Motors Acceptance Corp.</i> (1999) 72 Cal.App.4th 861.) In addition, the Plaintiff must allege injury in fact and loss of money or property suffered as a result of the unfair business practices. (Bus. & Prof. Code § 17204; <i>R & B Auto Ctr. v. Farmers Group, Inc.</i> (2006) 140 Cal.App.4th 327, 360.) Under the unlawful prong, a violation of law may be actionable as unfair competition under Cal. Business & Professions Code section 17200. (<i>Lueras v. BAC Home Loans Servicing, LP</i> (2013) 221 Cal.App.4th 49, 81.) Here, the FAC alleges theft in violation of Penal Code section 496. The FAC also alleges Plaintiff suffered injury in fact and loss of money as a result, including the money charged to his credit card. (FAC ¶¶ 46, 47, 51, 52.) No later than 10 days after service of the notice of ruling, Defendant shall file and serve an answer to the Complaint. (Cal. Rules Ct., Rule 3.1320(g).) Plaintiff to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to June 26, 2025, at 9:00 a.m. in this Department. Plaintiff to give notice.
8	Momenirad v. Hyundai Motor America	<u>Motion for Attorney Fees</u> Plaintiff Ali Momenirad moves for an award of attorney fees and costs against Defendant Hyundai Motor America. For the following reasons, the motion is GRANTED IN A REDUCED AMOUNT. Defendant shall